

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUNP056940: RORY LOMBARDO, BY AND THROUGH HIS SUCCESSOR IN
INTEREST, ROBIN LOMBARDO vs OXNARD MANOR, LP, et al.**

**09/22/2026 in Department 20
Petition to Compel Arbitration**

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. **If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.**

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendants Oxnard Manor, LP, Oxnard Manor GP, LLC, Oxnard Healthcare & Wellness Centre, LP, and Rockport Administrative Services LLC's (collectively "Defendants") Amended Petition to Compel Arbitration and Stay Proceedings

Tentative: Defendants' Amended Petition to Compel Arbitration and Stay Proceedings is GRANTED.

The Court finds that Defendants have established a valid arbitration agreement and that the agreement encompasses Plaintiff's claims. Plaintiff has not rebutted the presumption of legal capacity conferred by Probate Code section 810. The Court further finds that the agreement is not procedurally unconscionable.

The Court stays this matter pending arbitration and sets a review hearing regarding the status of arbitration for January 21, 2027, at 8:30 a.m. in Courtroom 20. The parties shall serve and file a joint status report concerning the status of the arbitration not later than 10 calendar days before the hearing.

Defendants shall provide notice of this ruling.

DISCUSSION

I. EVIDENTIARY OBJECTIONS

Defendants' objection to paragraph 2 of the Declaration of Philip J. Spinazze is SUSTAINED to the extent counsel purports to establish facts concerning the whereabouts or involvement of Decedent's family members or communications between family members and Facility personnel. Counsel does not establish personal knowledge of these matters.

Defendants' objections to paragraph 4 of the Spinazze Declaration and Exhibit A thereto are SUSTAINED. Plaintiff has failed to establish an applicable hearsay exception for the medical records upon which he relies to prove Decedent's alleged lack of capacity. In the absence of a custodian or other qualified witness establishing the requirements of Evidence Code § 1271, the records constitute inadmissible hearsay when offered for the truth of the medical findings and observations contained therein. The Court therefore does not consider Exhibit A for the truth of the medical diagnoses, laboratory values, cognitive assessments, or other medical findings contained therein, including the asserted October 27, 2025 "cognitive communication deficit," elevated ammonia level, "altered mental status," or October 31 findings of confusion, disorientation, or forgetfulness.

Plaintiff's objection to Francis Salupen's characterization of the October 24, 2025 History and Physical as "indicating that Rory Lombardo possessed full capacity to understand and make decisions" is SUSTAINED. Salupen is not shown to possess the medical expertise necessary to interpret that record or render an opinion concerning Decedent's legal capacity. The Court need not determine whether the underlying History and Physical independently satisfies the business-records exception because the Court does not rely upon that document as affirmative proof that Decedent possessed legal capacity.

Plaintiff's objections to authentication of the Arbitration Agreement and OneSpan audit trail are OVERRULED. Salupen he has worked at the Facility since December 2023, is familiar with its admissions procedures and standard admission paperwork, identifies the Arbitration Agreement as a record maintained in Decedent's Facility chart and business file, and describes the Facility's OneSpan electronic-signature process. (Salupen Decl., ¶¶ 3, 8-15.)

The Court considers the OneSpan audit trail for the electronic-event sequence and timing reflected therein. The audit trail does not, by itself, establish that Decedent read or understood the Arbitration Agreement, nor does the Court treat the electronic signature events alone as proof that he knowingly understood each contractual term. The timing reflected in the audit may nevertheless be considered in evaluating Plaintiff's procedural unconscionability argument.

The remaining evidentiary objections do not affect disposition of the motion, and the Court does not rely upon the challenged matters in reaching its ruling.

II. INITIAL DETERMINATION RE VALIDITY OF AGREEMENT

In deciding a petition to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties, and then determine the second gateway issue of whether the claims are covered within the scope of the agreement. (*Omar v. Ralphs Grocer Co.* (2004) 118 Cal.App.4th 955, 961.) The initial burden is on the party petitioning to compel arbitration to prove the existence of the agreement by a preponderance of that evidence. (*Villacreses v. Molinari* (2005) 132 Cal.App.4th 1223, 1230.) “Once the petitioner has met that burden, the burden shifts to the party opposing arbitration, to ‘produc[e] evidence of, and prov[e] by a preponderance of the evidence, any fact necessary to the defense.’ [Citation].” (*Ibid.*)

A. Formation of Agreement To Arbitrate

The initial determination of whether the parties agreed to arbitrate the dispute in question “involves two considerations: (1) whether there is a valid agreement to arbitrate between the parties; and (2) whether the dispute in question falls within the scope of that arbitration agreement.” [Citation.]’ [Citations.]” (*Bruni v. Didion* (2008) 160 Cal.App.4th 1272, 1283.) Once the moving party sets forth the terms of the agreement and evidence that the opposing party signed the agreement, the burden shifts to the opposing party to prove that there is no agreement to arbitrate. (See *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-219)

Defendants have satisfied their initial burden to establish an agreement to arbitrate. The record contains the Arbitration Agreement bearing Decedent’s electronic signature dated October 27, 2025. Salupen identifies the document as the separate Arbitration Agreement maintained in Decedent’s chart and Facility business file and describes the electronic-signature process used by the Facility. (Salupen Decl., ¶¶ 11-15.) Plaintiff has not submitted competent evidence that the electronic signature was forged or attributable to someone other than Decedent. An electronic signature may be authenticated through circumstantial evidence showing that it was the act of the purported signer; testimony from a witness who personally observed the signing is not required. (Civ. Code, § 1633.9, subd. (a); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060-1062.)

Plaintiff contends that Decedent lacked capacity to enter into the Agreement. Probate Code section 810 creates a rebuttable presumption that all persons have capacity to make decisions and provides that a person with a mental or physical disorder may nevertheless remain capable of contracting. Under Probate Code sections 810–812, the relevant question is whether a mental-function deficit significantly impaired the person's ability to understand and appreciate the consequences, risks, benefits, and alternatives of the particular decision. (Prob. Code, § 810, subds. (a)-(c); *Algo-Heyres v. Oxnard Manor* (2023) 88 Cal.App.5th 1064, 1067, 1070-1072.) Plaintiff has not presented evidence sufficient to rebut the presumption of capacity on October 27, 2025. As noted above, Plaintiff has not established the admissibility of the medical records upon which he relies to argue incapacity. This record therefore differs materially from *Algo-Heyres*. Serious illness, without competent evidence establishing the required connection between a mental deficit and the particular transaction, does not rebut the statutory presumption of capacity.

B. Dispute Falls Within The Scope Of The Agreement

“‘No dispute may be ordered to arbitration unless it is within the scope of the arbitration agreement.’ [Citation.]” (*Howard v. Goldbloom* (2018) 30 Cal.App.5th 659, 663.) “In determining the scope of an arbitration clause, ‘[t]he court should attempt to give effect to the parties’ intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made [citation].’ [Citation.]” (*Victoria v. Sup. Ct.* (1985) 40 Cal.3d 734, 744.)

Both pleaded causes of action fall within the Arbitration Agreement. Article 2.1 expressly encompasses claims arising from the provision or failure to provide services or health care, including negligence and statutory claims under the Elder Abuse Act.

III. UNCONSCIONABILITY ANALYSIS

To invalidate an agreement on unconscionability grounds, it is plaintiff’s burden to prove that the agreement was unconscionable at the time it was signed. (Civ. Code § 1670.5; *Magno v. The College Network, Inc.* (2016) 1 Cal.App.5th 277, 284.) Unconscionability has both a procedural and a substantive element. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 246 (*Pinnacle*).) Substantive unconscionability focuses on overly harsh or one-sided results. (*Armendariz, supra*, 24 Cal.4th 83, 114.) Both procedural and substantive elements must be present to conclude a term is unconscionable but need not be present to the same degree. Courts apply a sliding scale analysis under which “the more substantively oppressive [a] term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Id.*)

A. Procedural Unconscionability

“Procedural unconscionability is generally established by showing the agreement is a contract of adhesion, where a standardized contract drafted by the party with greater bargaining strength is imposed on the other party, leaving the subscribing party with only the option to adhere to the contract or reject it.” (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492–493, (*Ramirez*).)

The Court finds that there is no procedural unconscionability. While the Arbitration Agreement is preprinted, it was a separately paginated document prominently identified as an “ARBITRATION AGREEMENT” and states “READ CAREFULLY - Not Part of Admission Agreement.” Entering into the agreement was wholly voluntary. Decedent had been admitted to the Facility three days before he signed this document, and was expressly advised through the agreement that he was not required to sign it as a condition of admission or continued care. Thus, unlike circumstances in which a vulnerable resident reasonably may believe that immediate execution is necessary to obtain placement or care, the agreement itself made clear that declining arbitration would not jeopardize Decedent’s admission or continued treatment.

Additionally, the agreement afforded a 30-day written rescission period. Article 6.1 limits rescission prospectively, providing that the agreement continues to govern disputes arising before rescission. The Court therefore does not treat the provision as a complete 30-day retroactive cooling-off period. Nevertheless, the clause afforded Decedent a post-signing opportunity to reconsider and terminate arbitration as to future disputes. Nothing in the admissible evidence establishes that Defendants prevented Decedent from reviewing the agreement after execution, consulting family or counsel, or exercising the rescission provision.

Plaintiff points out that Defendants' OneSpan audit reflects an electronic signing session lasting approximately 29 seconds; and the record does not contain testimony from the Facility employee who actually presented the tablet describing what was explained to Decedent during that encounter. Plaintiff therefore questions whether Decedent meaningfully considered a seven-page rights-waiving agreement during the electronic signing process itself. While the 29-second audit trail is relevant in that it establishes the speed of the electronic execution process; it does not establish that Decedent was required to reach an irrevocable decision during those seconds, that he was told arbitration was mandatory, that he was denied an opportunity to ask questions, or that Defendants threatened to withhold continued care if he declined. This is materially distinguishable from the circumstances presented in *Haydon v. Elegance at Dublin* (2023) 97 Cal.App.5th 1280 ("*Haydon*"). There, the Court of Appeal upheld a finding of a high degree of procedural unconscionability where the arbitration agreement appeared near the end of a 44-page agreement among more than 20 miscellaneous provisions, the presentation and signature blocks were confusing, the resident was under temporal and financial pressure, and the trial court credited evidence that no one explained either arbitration or the opt-out procedure. (*Haydon, supra*, at 1287-1289.) Although *Haydon* confirms that an opt-out provision and "not a condition of admission" language do not automatically defeat procedural unconscionability, the court emphasized the absence of an "authentic informed choice" under the circumstances presented there. In contrast, the circumstances presented here reflect an un rebutted informed and voluntary choice.

B. Substantive Unconscionability

In light of the finding of no procedural unconscionability, the Court need not reach the question of substantive unconscionability. However, even were the court to find a low level of procedural unconscionability, Plaintiff has presented no evidence concerning the anticipated arbitration costs or Decedent's inability to bear them comparable to the evidentiary showing considered in *Haydon*. The attorney-fee language of Article X expressly applies "[e]xcept as required by law," undermining Plaintiff's contention that the agreement necessarily eliminates statutory attorney-fee rights under the Elder Abuse Act. Article 7.3's exclusion of Code of Civil Procedure section 1281.2(c) likewise does not, on this record, establish that the agreement as a whole is substantively unconscionable. Finally, the Court finds that the central purpose of the contract is lawful and the unconscionability of Article 2.2 could be cured through severance. (See *Ramirez v. Charter Communications* (2024) 16 Cal.5th 478, 516 (*Ramirez*) citing to *Armendariz supra*, 24 Cal.4th at 124.)

MOTION TO STAY PROCEEDINGS

The Court GRANTS Defendants' Motion to Stay Proceedings. Code of Civil Procedure section 1281.4 provides, in relevant part: "If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc., § 1281.4.) "The purpose of the statutory stay [under section 1281.4] is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved. [Citations.] [¶] In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective." (*Federal Ins. Co. v. Sup. Ct.* (1998) 60 Cal.App.4th 1370, 1374-1375.)